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Naga People's Movement of Human Rights
v
Union of India

The judgement that is the subject matter of this chapter offers yet another example of the Supreme Court abdicating its responsibility to protect fundamental rights when the government plays the 'national security' card. Even as in the 1990s the court was breaking new ground and interpreting the Constitution expansively in other cases, it toed the line and accepted the establishment narrative in this case. Following a fifteen-year wait for the case involving the constitutionality of the Armed Forces Special Powers Act (AFSPA) to be decided, inhabitants of the Northeast discovered that the more things changed, the more they remained the same.

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The AFSPA was enacted in 1958 in response to insurgency and demands for self-determination in the Northeast. Initially, Prime Minister Jawaharlal Nehru's reaction to the Naga rebellion was to send in the army with instructions to act with caution. The army was ordered to treat the rebels as 'fellow Indians' and to use proportionate force. However, the AFSPA came into being as the rebellion intensified. G.B. Pant, the home minister at the time, justified the law stating that it was necessary to enable the armed forces to address the rebellion effectively. But the law was not passed unopposed. In a particularly prescient criticism, an MP from Inner Manipur